

Before the  
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 23-02

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH & BEYOND INC. v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

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**COMPLAINANT’S OPPOSITION TO RESPONDENTS’ MOTION FOR TEN  
ADDITIONAL PAGES**

Complainant 20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. (“BBBY” or “Complainant”), by and through counsel, respectfully submits this opposition to Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited’s (together, “OOCL”) June 9, 2026 Motion for Ten Additional Pages (the “Second Extension Motion”).

**PROCEDURAL BACKGROUND**

On April 24, 2026, the Presiding Officer entered an Initial Decision (the “Initial Decision”) finding in favor of BBBY on four counts and awarding reparations of \$45,600,599.25 plus interest against OOCL. (Initial Decision, Sec. A (hereafter the “Initial Decision”).) On April 28, 2026, OOCL filed its “Corrected” Partially unopposed Motion to Extend Deadline and Increase Page Limit (the “First Extension Motion”).<sup>1</sup> On May 7, 2026, the Commission entered an Order (the “First Extension Order”) whereby the Commission ordered the following:

[T]he deadline to file exceptions be extended to within 60 days after the date of service of the Initial Decision; that replies to exceptions be due within 30 days after

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<sup>1</sup> BBBY refers to the “Procedural Background” section of its Opposition to the First Extension Motion, dated April 29, 2026 (the “First Extension Opposition”), for a full description of the briefing on OOCL’s First Extension Motion. Also on April 29, 2026, OOCL improperly filed a reply to BBBY’s First Extension Opposition, which reply was without a request “by the Commission or presiding officer” or a showing of extraordinary circumstances and thus in direct contravention of Rule 71(c) of the Federal Maritime Commission’s Rules of Practice and Procedure. 46 C.F.R. Section 502.71(c).

the date of the service thereof; and that the page limit for exceptions briefs be 60 pages in length, exclusive of pages containing table of contents, table of authorities, and certificate of service. No change is made to the length of reply briefs.

First Extension Order at 2.

### **LEGAL STANDARD**

Rule 102(a) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Rule 69(d) of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.69(d) ("Rule 69(d)"), provides that: "A repetitious motion will not be entertained."

### **ARGUMENT**

#### **OOCL's Second Extension Motion Should Be Denied Because It Is Improperly Repetitious and Otherwise Fails to Show Good Cause for Additional Pages for Exceptions.**

OOCL's Second Extension Motion is facially improper because it contravenes Rule 69(d). OOCL pointedly fails to mention its First Extension Motion or the Commission's First Extension Order, much less explain—because it cannot—why the instant Second Extension Motion is not entirely duplicative of its earlier request, which the Commission already considered and ordered the relief it deemed appropriate. The Commission should reject the Second Extension Motion on that basis alone.

The Commission should also reject OOCL's attempted second bite at the apple because it fails to establish good cause for the relief requested for the same reasons described in BBY's First Extension Opposition and for the same reasons reflected in the Commission's First Extension Order. Rather than good cause, the Second Extension Motion instead demonstrates why it should ***not*** be granted: in addition to providing nothing other than the same points it

previously raised, *see* Second Extension Motion ¶¶ 1-4, 6, or improper policy arguments that were never raised below, *see id.* ¶ 5, OOCL's Second Extension Motion shows that OOCL intends to misuse the exceptions process as an improper attempt to re-litigate the entire case regardless of whether its arguments have any credible basis.<sup>2</sup>

The Commission should reject OOCL's attempted abuse of the litigation process.

### CONCLUSION

For the foregoing reasons, BBY respectfully requests that the Commission deny OOCL's Motion.

Dated: June 10, 2026

Respectfully submitted,

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/s/ J. Lee Hill

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<sup>2</sup> Regarding the credibility of OOCL's counsel's representations as to the proceedings below, in a related proceeding U.S. District Judge Charles Eskridge of the U.S. District Court for the Southern District of Texas recently observed: "Indeed, it is quite suspect, in that the undersigned has no assurance that a credible and accurate statement of the subject proceedings has been provided." Order Denying Reconsideration at 1, *Orient Overseas Container Line Limited v. United States*, Case No. 4:26-cv-03606 (S.D. Tex. May 14, 2026), ECF No. 12.

*Certificate of Service*

I hereby certify that I have this day caused to be served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing a copy to their counsel of record listed below:

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Dated: June 10, 2026

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